IHL Assignments 1.1 and 1.2 – Answers

Based on the lecture notes, the ICRC Opinion Paper (2024), Gill (2016) and Arimatsu & Choudhury (Chatham House, 2014), plus news reporting up to early November 2026

How to read this. Abbreviations: **IAC** = international armed conflict; **NIAC** = non-international armed conflict; **OAG** = organized armed group; **GC** = Geneva Convention; **AP** = Additional Protocol; **CA3** = Common Article 3; **HR** = 1907 Hague Regulations; **CIHL** = customary IHL; **IHRL** = international human rights law. Facts after 2016 (Syria, Yemen), and especially from 2025–2026, come from news reports and should be checked against the **Geneva Academy's War WATCH portal** before you rely on them. Where classification is **contested**, both views are given – this is usually where the marks are.

1.1 The existence of an armed conflict

(a) What are the sources of IHL?

IHL is a branch of public international law, built on the model of sovereign equal states, so it has the **same formal sources** (Art. 38 ICJ Statute) and rules of interpretation:

- **Treaties.** Historically two tracks merged: **Hague law** (means and methods of warfare) and **Geneva law** (protection of victims). Core treaties: the **1907 Hague Regulations**; the **four Geneva Conventions of 1949** (I wounded and sick on land; II wounded, sick and shipwrecked at sea; III prisoners of war; IV civilians) – universally ratified (196 parties), many provisions also customary; **AP I (1977)** for IACs (~175 parties) and **AP II (1977)** for NIACs (~170 parties) – not all of their provisions are customary; AP III (2005, emblem). Plus weapons and specialized treaties (e.g. 1868 St Petersburg Declaration, 1925 Geneva Gas Protocol, BWC 1972, CCW 1980 and protocols, CWC 1993, Ottawa Mine Ban 1997, Cluster Munitions 2008, 1954 Hague Cultural Property Convention). Parties to a conflict can also make **special agreements** (CA3 para. 3).
- **Customary international law (CIHL).** Very important because (i) not all treaties are universally ratified – major military powers such as the **US and Israel are not party to AP I**, so e.g. targeting rules bind them through custom; and (ii) treaty law for NIACs is thin (CA3 and a short AP II). The **ICRC Customary IHL Study (2005)** lists 161 rules, most of which (about 148) apply in both IACs and NIACs – showing **partial convergence** of the two regimes, though it is not complete.
- **General principles**: humanity, distinction, proportionality, military necessity, precaution, and the **Martens Clause** (where no rule exists, people remain protected by "the principles of humanity and the dictates of public conscience").
- **Subsidiary means**: case law (ICTY – *Tadic*; ICJ – *Nicaragua*, *Wall*, *Bosnian Genocide*; ICC), the **ICRC Commentaries**, and scholarship.
- **Other relevant material**: binding UN Security Council resolutions; soft law and expert manuals (military manuals, San Remo Manual, Tallinn Manual); unilateral commitments by armed groups.
- **Related bodies of law that overlap but are distinct**: *jus ad bellum* (whether force may be used), IHRL (post-WWII, applies in peace and war) and international criminal law (war crimes, crimes against humanity, genocide, aggression).

(b) What types of armed conflict does IHL distinguish between?

Legally there are **only two** types:

- **International armed conflict (IAC)** – CA2: (i) declared war; (ii) "any other armed conflict" between two or more states; (iii) total or partial **occupation** of a state's territory, even if unresisted; and (iv) **wars of national liberation** against colonial domination, alien occupation or racist regimes (AP I, Art. 1(4)) – of

little practical relevance today.

- **Non-international armed conflict (NIAC)** – state v. OAG, or OAG v. OAG. Two sub-types: (i) **CA3 NIACs** (all NIACs) and (ii) the narrower **AP II NIACs** (state v. OAG with territorial control).
- Labels such as **"internationalised NIAC"**, **"internalised IAC"**, **"transnational"**, **"spillover"**, **"extraterritorial"** or **"global"** armed conflict are **not separate legal categories**. They describe processes or situations that must still be classified as IAC or NIAC. Gill and the ICRC both reject a separate "transnational" category, and the ICRC rejects a "global" NIAC.

(c) What is a belligerent occupation under IHL?

Occupation is a form of IAC (CA2(2)): a state exercises control over the territory of another state **without its consent**. Definition – **Art. 42 HR**: "Territory is considered occupied when it is actually placed under the authority of the hostile army. The occupation extends only to the territory where such authority has been established and can be exercised." "Authority" is understood through the **effective control test** (ICRC 2024), three **cumulative** conditions:

1. foreign armed forces are **physically present** without the consent of the effective local government;
2. that government is, or can be, rendered **substantially or completely incapable** of exercising its powers because of them;
3. the foreign forces are **in a position to exercise authority** in its place.

- It applies whether or not the occupation meets **armed resistance**, and regardless of whether the occupation itself is lawful under *jus ad bellum*.
- **Occupation by proxy**: a state that has **overall control** over local authorities or armed groups which themselves control territory is the occupying power.
- **Applicable law**: HR (Arts. 42–56), **GC IV** (Arts. 27–34, 47–78), AP I where ratified, CIHL, and IHRL alongside. Key rules: the occupant is only a temporary administrator, not sovereign; it must restore and ensure public order and safety (Art. 43 HR); treat the population humanely and provide food and medical supplies; accept relief; no collective punishment; **no forcible transfers or deportations** and **no transfer of its own civilians** into the territory (Art. 49 GC IV).
- **End**: as soon as **any one** of the three conditions disappears. Exceptionally, a withdrawing power keeping key functions remains bound for those functions (the functional approach – relevant to Gaza; see the ICJ Advisory Opinion of 19 July 2024).

(d) Requirements, indicative factors and applicable sources for each type

	Substantive requirements	Indicative factors	Applicable law
IAC	A **resort to armed force between states** (*Tadic*), i.e. a hostile act attributable to a state against another state. **No intensity or duration threshold** ("first shot"). Also: declared war; occupation.	Military operations against another state's forces, territory, population or infrastructure; using or controlling its territory **without consent**; even one skirmish or a unilateral attack. Not: mistakes, friendly fire, ultra vires acts, arms sales. A NIAC becomes an IAC if a foreign state has **overall control** over the OAG (*Tadic* 1999) or fights the territorial state directly.	GC I–IV, AP I (if both parties have ratified), HR 1907, weapons treaties, CIHL, plus IHRL
Occupation	Effective control: unconsented presence + local government incapacitated + foreign forces able to exercise authority (Art. 42 HR).	Troops on the ground, checkpoints, administration, control of borders, airspace and essential services; also through proxies under overall control.	HR, GC IV, AP I, CIHL, IHRL

	Substantive requirements	Indicative factors	Applicable law
CA3 NIAC	**Protracted armed violence** between a state and an OAG or between OAGs (*Tadic*): (1) **organization** of the non-state party; (2) **intensity**. No other condition (motive irrelevant).	**Organization**: command structure, discipline, HQ, territorial control, access to weapons, recruits and training, ability to plan coordinated operations, speak with one voice and negotiate. **Intensity**: number, duration and severity of clashes; types of weapons; munitions; numbers of forces; casualties; destruction; displacement; UN Security Council involvement. Excludes riots and sporadic violence (AP II, Art. 1(2)).	CA3, CIHL, other treaties applicable in NIACs (e.g. CCW as amended, 1999 Second Protocol to the Hague Cultural Property Convention), IHRL
AP II NIAC	In addition: (1) on the territory of a state party; (2) between its **armed forces** and an OAG (not OAG v. OAG); (3) **responsible command**; (4) **control over part of the territory** enabling (5) sustained and concerted military operations and implementation of AP II (Art. 1(1)).	Size and stability of territorial control; ability to impose discipline; governance structures in the territory.	CA3 + AP II + CIHL + IHRL

Points worth adding: classification is **factual** – neither declarations, recognition, the legality of force nor the parties' legitimacy matter; there is no central authority, so the parties and the ICRC each classify. The intensity of an IAC is debated (ICRC: none required; ILA 2010 report and some state practice: "armed incidents" may fall below it). A single situation can involve **parallel conflicts** (e.g. a NIAC with a group and an IAC with the territorial state). For foreign intervention against an OAG **without the territorial state's consent**, the ICRC (2016 Commentary; 2024 paper) sees an IAC with the territorial state as well as a NIAC with the group, while **Gill** argues only a NIAC exists unless the territorial state's forces, assets or territory are attacked or occupied. New tools for coalitions (ICRC 2024): the **support-based approach** (third parties joining an existing NIAC) and **aggregation of intensity** between coordinated groups.

(e) When does the protection afforded by IHL end?

- **General rule – IAC**: at the **general close of military operations** (GC IV, Art. 6(2); AP I, Art. 3(b)), meaning a stable end with no reasonable likelihood of fighting resuming – not just a ceasefire or peace treaty.
- **Occupation**: when the occupation ends (one condition of effective control lost). GC IV, Art. 6(3) limits some provisions to one year after the general close of military operations, but key articles continue while the occupant exercises government functions; AP I, Art. 3(b) applies the law until the occupation ends.
- **NIAC**: at a **peaceful settlement** (*Tadic*), understood factually: (i) a party **ceases to exist** (defeat, demobilization, dissolution), or (ii) a **lasting cessation of armed confrontations without real risk of resumption** (indicators: implemented peace agreement or ceasefire, disarmament, demobilization and reintegration, lifting of emergency measures, a long period without hostilities). Temporary lulls and ceasefires do not end it.
- **But protection continues for individuals**: **POWs** until final release and repatriation (GC III, Art. 5; release "without delay" after active hostilities end, Art. 118); **civilian internees** until release, repatriation or re-establishment (GC IV, Arts. 6(4), 133); in NIACs, persons detained for conflict-related reasons stay protected by AP II, Arts. 5–6 (Art. 2(2)) and by CA3 as long as they remain in that situation.

- **Some obligations start or continue after the conflict**: missing persons and the dead, clearance of explosive remnants of war (CCW Protocol V), the widest possible amnesty (AP II, Art. 6(5), but not for war crimes), and prosecution of grave breaches.
- **Some IHL applies at all times**: e.g. CA1 (respect and ensure respect), dissemination and training, and weapons bans (stockpiling).

(f) Which rules govern hostilities below the IHL thresholds?

- **International human rights law** (ICCPR, ECHR, ACHR, ACHPR, CAT, etc.) is the main regime. Force is governed by the **law-enforcement paradigm**: lethal force only when **absolutely necessary and proportionate** to protect life (UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials 1990; Code of Conduct 1979; ECtHR *McCann v UK*). This is far stricter than IHL, which permits targeting fighters.
- **Derogations** in a public emergency (ICCPR, Art. 4; ECHR, Art. 15) are possible but limited, and non-derogable rights (life, prohibition of torture, etc.) remain.
- **Domestic law**: criminal law, police and emergency legislation. Fighters do **not** have combatant immunity and can be prosecuted for taking up arms.
- **International criminal law**: crimes against humanity and genocide do not require an armed conflict.
- **Interstate force**: since an IAC has no intensity threshold, almost every hostile use of force between states is already an IAC. Lower-level incidents (e.g. coast-guard law enforcement at sea) are governed by the law of the sea, IHRL and *jus ad bellum* (UN Charter, Arts. 2(4) and 51), which applies regardless of IHL.
- **IHL rules that apply at all times**, refugee law, and soft-law minimum standards (e.g. the 1990 Turku Declaration).
- Note that IHRL also continues to apply **during** armed conflict (ICJ, *Nuclear Weapons* 1996, *Wall* 2004), with IHL as *lex specialis* where the two conflict.

Key takeaways – 1.1

- Sources: **treaties** (HR 1907, GCs 1949, APs 1977, weapons treaties), **customary IHL** (ICRC 2005 study – crucial for NIACs and for states not party to AP I), general principles, and case law and commentaries as subsidiary means.
- Only **two legal types**: IAC (including occupation and wars of national liberation) and NIAC (CA3 and AP II). “Internationalised”, “internalised” and “transnational” are descriptions, not categories.
- **Occupation** = Art. 42 HR + effective control test (three cumulative conditions); it applies even without resistance; GC IV governs.
- **IAC**: any hostile use of force between states, no threshold. **NIAC**: organization + intensity. **AP II**: in addition, responsible command, territorial control, and only state v. OAG.
- IHL ends at the **general close of military operations** (IAC), the end of occupation, or a **peaceful settlement** (NIAC) – but protection for detainees continues until release.
- Below the thresholds, **IHRL and domestic law** govern, using the stricter law-enforcement rules on force.

1.2 The classification of contemporary armed conflicts

(a) Syria and Yemen since 2010: conflicts, parties and applicable law

Syria

Syria is party to the GCs and to AP I (since 1983), but **not to AP II**. NIACs in Syria are therefore governed by **CA3 + CIHL**; IACs by **GCs + AP I (where the other state is also a party) + HR + CIHL**.

Conflict	Parties	Classification and dates
Main NIAC (civil war)	Assad government + allied militias (NDF, Hezbollah, Iraqi/Afghan Shi'a militias) v. FSA and other opposition groups, Jabhat al-Nusra/HTS, ISIS, Kurdish YPG/SDF	**NIAC from about February–March 2012** (Commission of Inquiry: Feb. 2012; Chatham House: by March 2012), once the FSA was sufficiently organized; violence alone was intense from mid-2011. Gill (2016) treats it as **one overall NIAC with many parties**. It ended in its original form with the **fall of Assad on 8 December 2024** (one party ceased to exist).
Russia and Iran's involvement	Russia (air campaign from Sept. 2015), Iran (IRGC)	Fought **with the consent of the government** → joined the NIAC on the government side; no IAC (Gill).
US-led coalition v. ISIS (2014–)	US, UK, France, etc. v. ISIS (also strikes on the Khorasan Group)	**NIAC** with ISIS. Whether there was **also an IAC with Syria** (no consent from Assad) is **contested**: yes per ICRC (2016/2024); no per Gill. US strikes on Syrian government targets (2017 Shayrat, 2018) clearly created IAC episodes.
Turkey	Turkey and the Turkish-backed Syrian National Army (SNA) v. YPG/SDF and ISIS (operations 2016, 2018, 2019)	NIAC(s) with the YPG/SDF and ISIS. Turkey's presence in northern Syria without consent is treated by many (e.g. RULAC) as an **IAC/occupation**; if Turkey has overall control over the SNA, that is **occupation by proxy**.
Israel–Syria	Israel v. Syria (and Iranian/Hezbollah targets in Syria)	**IAC**: occupation of the Golan since 1967, recurring air strikes; after Assad's fall Israel **seized the buffer zone** and nearby areas (Dec. 2024) and struck Syrian government forces and Damascus (July 2025) → ongoing IAC and occupation (EUAA, Dec. 2025).
Post-Assad NIACs (2025–2026)	New government (al-Sharaa) v. Assad loyalists (coastal violence, March 2025), ISIS, Druze armed factions in Suwayda (July 2025), and the **SDF** (major fighting in Aleppo and the east, January 2026)	NIACs governed by CA3 + CIHL (the new government inherits Syria's treaty obligations). Government–SDF talks in 2026 have had mixed results (reports).

Yemen

Yemen is party to the GCs, **AP I and AP II** (since 1990), so AP II can apply to NIACs where its conditions are met.

Conflict	Parties	Classification and dates
2011 conflicts (Chatham House)	Government v. Houthis (from March 2011); government v. Ansar al-Shari'a/AQAP (March 2011); Saleh loyalists v. Ali Mohsen units and al-Ahmar militias (May 2011); possibly Houthis v. Salafi/Islah groups	**Multiple parallel NIACs**; **AP II** for Houthis and AAS (territorial control), CA3 for the rest. US strikes on AQAP with the government's **consent** → NIAC, not IAC.

Conflict	Parties	Classification and dates
Civil war (2014–)	Houthis (Ansar Allah) – who took Sanaa in Sept. 2014 – v. the internationally recognized government (Hadi, then the Presidential Leadership Council from 2022)	**NIAC** (CA3 + AP II + CIHL). The Houthis are de facto authorities in the north, but are not recognized as the government.
Saudi/UAE-led coalition (March 2015–)	Coalition intervening **at the request of President Hadi** v. Houthis	**NIAC** on the government's side – consent prevents an IAC with Yemen. Truce since April 2022 (largely holding, not a peaceful settlement).
Southern conflicts	Southern Transitional Council (UAE-backed) v. government forces (2018–19 Aden fighting); STC offensive and Saudi strikes against it (Dec. 2025–Jan. 2026)	**NIACs** between the state and the STC (an OAG); reports say the STC was pushed out of Hadramawt and al-Mahra in January 2026.
AQAP / ISIS	Government, coalition and US v. AQAP	NIAC (CA3 + CIHL; AP II for the government if conditions met). US involvement with consent → NIAC.
Red Sea and Israel (2023–)	Houthis v. Israel (missiles from Oct. 2023; Israeli strikes from July 2024); Houthis v. US/UK (strikes Jan. 2024–May 2025; US–Houthi ceasefire May 2025)	**NIAC** with the Houthis as an OAG. Whether there is also an **IAC with Yemen** depends on consent (the recognized government did not object to US/UK strikes; Israel's strikes were not consented to), or on treating the Houthis as a de facto government – **contested**. Houthi strikes on Israel resumed during the 2026 Iran war (March–April 2026, reports).

(b) Internationalised and/or internalised? Effect on the applicable law

- **Syria – internationalisation through overall control?** Gulf, Turkish and Western support for the FSA (weapons, salaries, training) did **not** reach **overall control** (Chatham House 2014; Gill 2016), so the main NIAC was not internationalised. Russia and Iran fought with **consent**, which keeps it a NIAC. The clearest candidate is **Turkey and the SNA** in northern Syria (occupation by proxy, if overall control is shown).
- **Syria – parallel IACs rather than internationalisation.** Foreign states fighting Syria directly (Israel; US strikes on Syrian forces; Turkey's unconsented presence) created **separate IACs alongside the NIAC**, not a transformation of the NIAC. The **coalition v. ISIS** question shows the split: **ICRC** – parallel IAC with Syria because there was no consent; **Gill** – NIAC only, because force was aimed solely at ISIS-held areas and neither side saw itself at war ("be careful what you wish for": otherwise the coalition would be "at war" with Russia and Iran too).
- **Syria – internalisation after Assad.** When the new government replaced Assad (Dec. 2024) and established relations with the US and others – reportedly joining the anti-ISIS coalition in late 2025 – foreign operations against ISIS acquired **consent**. On the ICRC view, any US–Syria IAC therefore became a **NIAC against ISIS only**, an internalisation driven by consent (compare Afghanistan 2002 and Libya 2011). Israel's strikes and occupation remain unconsented, so the **Israel–Syria IAC continues**.
- **Yemen – internalisation by consent.** The Saudi-led coalition and the US acted at the request, or with the consent, of the recognized government, so their fighting against the Houthis and AQAP stayed **NIAC**. This depends on **recognition** (Chatham House): if the Houthis were treated as the government of Yemen, the coalition's war would be an IAC.
- **Yemen – internationalisation via Iran?** Iranian money and weapons for the Houthis have **not** been shown to amount to overall control, so the conflict was not internationalised, despite the Houthis

forming part of Iran's "axis". If overall control were proven, the whole coalition–Houthi war would become an IAC with Iran.

- **Effect on the applicable law.** Where a conflict stays a NIAC, only **CA3 + CIHL** apply (+ AP II in Yemen, but not in Syria). There is no POW status or combatant immunity, and no law of occupation. Where a parallel IAC exists (Israel–Syria; possibly the coalition–Syria), the **full GCs + AP I + HR** apply to that relationship, including GC III for captured soldiers and GC IV/HR for occupied areas (Golan, buffer zone, northern Syria). Internalisation means moving from IAC to NIAC rules for that relationship.

(c) Ukraine since 2014

Russia and Ukraine are both parties to the GCs, **AP I and AP II** (Russia withdrew its Art. 90 AP I declaration in 2019 but remains a party).

Period	Conflict(s)	Classification
Feb.–March 2014 – Crimea	Russia v. Ukraine	**IAC in the form of occupation** from late February 2014 (unconsented Russian forces seized control; occupation applies even though largely unresisted). The 2014 "annexation" does not end the occupation under IHL.
April 2014–Feb. 2022 – Donbas	Ukraine v. "DPR" and "LPR" armed groups	**NIAC** from about April–May 2014 (organized groups, intense fighting) – CA3 + AP II + CIHL.
2014–2022 – Russia's role in Donbas	Russia v. Ukraine	**Parallel IAC** from at least **July–August 2014** (cross-border shelling, Russian troops at Ilovaisk) – view of the ICC Prosecutor (2016) and RULAC. Arguably the NIAC was **internationalised** because Russia had **overall control** over the DPR/LPR; the ECtHR (*Ukraine and the Netherlands v Russia*, Grand Chamber decision 2023, merits judgment 2025) found Russia exercised **effective control** over separatist-held areas from 11 May 2014. Those areas were then also **occupied by proxy**.
24 Feb. 2022 – present	Russia v. Ukraine (full-scale invasion)	**IAC** and **occupation** of large parts of the south and east (some withdrawn from, e.g. Kyiv region and Kherson city in 2022). DPR/LPR forces, Wagner and others are **part of Russia's forces** (incorporated or under its control), so there is no separate NIAC. Russia's 2022 "annexations" have no effect on occupation status.
Other states	North Korea (troops deployed to Kursk, 2024–25); Belarus (territory used for the 2022 invasion); Western states (weapons and intelligence)	North Korea's troops fighting Ukraine make it a **party to the IAC**. Belarus's role is debated (assistance under *jus ad bellum*, not co-belligerency unless it uses force itself). Western **arms supply does not** make states parties (sale or donation of equipment is not enough – ICRC); intelligence support close to targeting is debated under the support-based approach.
Other episodes	Ukraine's incursion into Russia's Kursk region (Aug. 2024–2025); anti-Kremlin Russian volunteer units in the Belgorod raids (2023)	Part of the same IAC (Ukrainian forces on Russian territory – possibly occupation of parts of Kursk). The volunteer units are probably part of Ukraine's forces if under its command; otherwise a possible NIAC with Russia, if organization and intensity are met.

Applicable law in the IAC: GCs I–IV, AP I, HR 1907, CIHL, weapons treaties, plus IHRL (ECHR applied to Russia until 16 Sept. 2022). **Status (late 2026)**: fighting continues; peace talks have stalled, with only a local ceasefire reported for Oleshky (from 27 October 2026) – so there is no general close of military operations yet.

(d) Israel since October 2023

Israel is party to the GCs but **not to AP I or AP II**, so beyond the GCs and HR its obligations come from **CIHL**. Note that several of these classifications are **contested**.

Conflict	Parties and start	Classification and applicable law
Gaza	Israel v. **Hamas** (al-Qassam Brigades), **Palestinian Islamic Jihad** and other groups – hostilities from **7 October 2023** (part of a longer conflict since 2005/2007)	**Contested.** (i) **NIAC** (Israel v. OAGs) – the view in the lecture and of many states: CA3 + CIHL. (ii) **IAC** – RULAC/Geneva Academy, because Palestine is a state party to the GCs (since 2014) and/or the conflict takes place in an **occupied territory**. In addition, the **law of occupation** (GC IV, HR) applies where Israel exercises effective control (ICJ AO 19 July 2024: occupation of Gaza continued to the extent of Israel's control; Israeli forces control large parts of Gaza on the ground). The **ceasefire of 10 October 2025** did not end the conflict: Israeli forces still hold over half the Strip, strikes continue and disarmament has not happened – not a lasting cessation.
West Bank	Israel; Palestinian armed groups (Jenin, Tulkarm); settler violence	**Belligerent occupation** (IAC) since 1967 – GC IV, HR, CIHL, IHRL. Large-scale operations against armed groups (e.g. 2025) are governed by occupation law and possibly a NIAC if organization and intensity are met.
Lebanon	Israel v. **Hezbollah** from **8 October 2023**; ground invasion 1 Oct. 2024; ceasefire 27 Nov. 2024 (Israel kept five positions); renewed war from **2 March 2026** during the Iran war; truce from mid-April 2026, poorly observed (reports)	**NIAC** with Hezbollah (CA3 + CIHL). Additionally an **IAC with Lebanon**: per the ICRC/RULAC, because force is used on Lebanese territory without consent; and in any case through the **occupation** of parts of southern Lebanon by Israeli ground forces (GC IV, HR).
Syria	Israel v. Syria – ongoing (occupation of the Golan since 1967); strikes; seizure of the buffer zone in Dec. 2024; strikes on Syrian government forces (July 2025)	**IAC + occupation** (GCs, HR, CIHL). Strikes in Syria against Iranian forces and Hezbollah also fall within the IAC with Iran and the NIAC with Hezbollah.
Iran	Israel v. Iran: strike on the Iranian consulate in Damascus (1 April 2024) and Iranian missile/drone attacks (13–14 April, 1 Oct. 2024), Israeli strikes (Oct. 2024); **12-day war 13–24 June 2025** (US strikes on 22 June); **war from 28 Feb. 2026** with the US; ceasefire with renewed exchanges (reports)	**IAC** – no intensity threshold, so it began at the latest in **April 2024**. The US is a party to the IAC (June 2025; 2026). Law: GCs, HR, CIHL (neither Israel nor Iran is party to AP I – Iran signed but did not ratify). Whether intermittent pauses end the IAC depends on the general close of military operations – not yet reached.
Yemen (Houthis)	Israel v. Houthis – missiles and drones from **19 October 2023**; Israeli strikes on Hodeidah and Sanaa from July 2024	**NIAC** with the Houthis (OAG) – CA3 + CIHL; possibly also an **IAC with Yemen** (no consent from the recognized government) or with the Houthis as a de facto government – contested.
Iraq and others	Israel v. Iraqi militias ("Islamic Resistance in Iraq") launching drones (2023–24); **strike on Hamas leaders in Doha, Qatar (9 Sept. 2025)**	Iraqi militias: possible NIAC if intensity is met (or part of an IAC with Iran if under its overall control). Qatar strike: on the **ICRC consent view** a (brief) IAC with Qatar; on **Gill's view** only an extension of the conflict with Hamas – a good illustration of the debate.

IHRL (ICCPR, CAT, CRC, etc.) also applies, including extraterritorially in occupied territory (ICJ, *Wall*, 2004).

(e) To what extent does the IAC/NIAC difference still matter?

Convergence: the gap has narrowed a lot. The ICRC Customary Study shows most rules (about 148 of 161) apply in both. **Conduct of hostilities** rules (distinction, proportionality, precautions, prohibited weapons) are now **essentially the same**, and war crimes in NIACs can be prosecuted (ICTY *Tadic* 1995; Rome Statute, Art. 8(2)(c) and (e)). Gill: for deciding whether an attack is indiscriminate or disproportionate, classification "will make little difference, if any". **But important differences remain**:

- **Status of fighters**: only in IACs is there **combatant status**, combatant immunity and **POW status** (GC III). In NIACs, members of OAGs can be prosecuted under domestic law just for fighting.
- **Detention and internment**: detailed rules and a legal basis exist in IACs (GC III and GC IV); in NIACs the grounds and procedures for internment are unclear (CA3 and AP II only regulate treatment).
- **Occupation law** applies only in IACs.
- **Treaty density**: the full GCs + AP I (hundreds of articles) v. CA3 + a short AP II.
- **Enforcement**: **grave breaches** and the mandatory universal jurisdiction regime (GCs, AP I) apply only in IACs; the list of war crimes is still somewhat shorter for NIACs.
- **ICRC role**: a **treaty right to visit** POWs and internees in IACs v. only a right of initiative in NIACs. Protecting Powers exist only in IACs.
- **Naval warfare** (blockade, prize law) and the **law of neutrality** apply only in IACs.
- **Geographical scope**: an IAC applies across the territory of the parties and international spaces; a NIAC is in principle limited to the state concerned (plus spillover), and its limits are less settled (Gill; ICRC 2024).
- **Political and legal relationships between states**: classifying something as an IAC can draw in co-belligerents (Gill: coalition "at war" with Syria, Russia and Iran). States are reluctant to admit NIACs, armed groups are keen to have them recognized, and recognition and consent shape the result (Chatham House).
- **Practical difficulties** (lecture): 1949 concepts are hard to apply to fluid situations with multiple parties; denial and secrecy make the facts hard to establish; conflicts move between IAC and NIAC.

Conclusion: the distinction matters much less for **how attacks may be conducted**, but it still matters greatly for **status, detention, occupation, enforcement and the reach of the law** – and for who counts as a party. That is why the classification debates (consent, overall control, the support-based approach, aggregation) remain practically important rather than merely academic.

Key takeaways – 1.2

- **Syria**: one main NIAC from 2012 (CA3 + CIHL; no AP II), ended in its original form by Assad's fall in Dec. 2024; new post-Assad NIACs (loyalists, ISIS, Druze factions, SDF); a parallel **IAC and occupation with Israel**; contested IACs with the US-led coalition and Turkey.
- **Yemen**: multiple NIACs (Houthis, AQAP/AAS, STC, 2011 elite factions), with **AP II** where groups control territory; the Saudi-led and US interventions stayed NIACs because of **consent**; the Red Sea and Israel strikes raise the IAC question.
- **Internationalisation** requires **overall control** (*Tadic*) – never clearly proven for Syria or Yemen (Iran–Houthis, Gulf states–FSA); foreign fighting against the territorial state creates **parallel IACs** instead.
- **Internalisation** happens through **consent** of a new or recognized government (Yemen coalition; Syria after Assad) – recognition is decisive and politically sensitive.
- **Ukraine**: IAC and occupation since **February 2014** (Crimea); a Donbas NIAC from 2014, internationalised or paralleled by an IAC because of Russian control and involvement; a full-scale IAC since **24 Feb. 2022**; North Korea a party; arms suppliers are not.

- **Israel since Oct. 2023**: Gaza (NIAC v. IAC contested, plus occupation law), West Bank (occupation), Hezbollah (NIAC) + Lebanon (IAC/occupation), Syria (IAC/occupation), **Iran (IAC, from April 2024 at the latest; 2025 and 2026 wars)**, Houthis (NIAC, IAC contested). Israel is bound by the GCs, HR and **CIHL** (not AP I or II).
- Ceasefires (Gaza Oct. 2025, Lebanon 2024/2026, Iran 2025/2026) **do not end** conflicts unless there is a **lasting cessation without real risk of resumption**.
- **IAC v. NIAC still matters** for combatant and POW status, detention, occupation, grave breaches, ICRC access, neutrality and geography – but much less for targeting rules, thanks to customary convergence.

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